

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MAY 22, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE, N.A. v. WILLIAMS
Case No. cl24-07031**

(Continued Hearing on) Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement Against Defendant

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail, on Defendant at an address at which personal service of summons and complaint had been completed over a year earlier. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

The court continued hearing from March 24, with specific instructions to file an amended notice of hearing, and a proof of service for the amended notice and the motion papers in a manner authorized for service of summons.

With no new filings, the court denies this motion, without prejudice to refile and serve in a manner authorized for service of summons.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

MICHAEL BELL v. GENERAL MOTORS, LLC
Case No. CU24-10072

Demurrer and Motion to Strike Punitive Damages re: First Amended Complaint

TENTATIVE RULING

Defendant GENERAL MOTORS, LLC demurs to the cause of action for fraudulent inducement within Plaintiff MICHAEL BELL's first amended complaint ("1AC"). Defendant simultaneously moves to strike the 1AC's prayer for punitive damages. Summarized, the 1AC alleges that on June 11, 2019 Plaintiff bought a 2019 Chevy Silverado 1500 (the "Vehicle") that came with Defendant's express warranty. Plaintiff purchased the Vehicle from Defendant's authorized dealer Dublin Buick GMC Chevrolet Cadillac. The Vehicle manifested defects notably including a defective ten-speed transmission that causes hesitant acceleration, harsh shifting, jerking, shuddering, surges in speed, and transmission failure. Defendant has not obeyed its obligations under the Song-Beverly Consumer Warranty Act (the "lemon law") and fraudulently concealed its knowledge of the transmission defect while effecting the sale of the Vehicle

Notice of Tentative Ruling. Defendant's notices of demurrer and motion do not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). The court cautions Defendant to provide proper notice of the tentative ruling system in future filings.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Statute of Limitations. The statute of limitations for fraudulent inducement is three years. (Code Civ. Proc., § 388, subd. (d).) A demurrer based on the statute of limitations must clearly and affirmatively show that the claim is barred. (*Lockley v. Law*